

Court No. - 32

Case :- WRIT - C No. - 26979 of 2018

Petitioner :- Manish Rungta

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Manoj Kumar Rajvanshi, Vinay
Kumar Mishra

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

As prayed by the learned counsel for the petitioner, put up as
fresh on 13.8.2018.

Order Date :- 9.8.2018

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Court No. - 32

Case :- WRIT - C No. - 26979 of 2018

Petitioner :- Manish Rungta

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Manoj Kumar

Rajvanshi, Vinay Kumar Mishra

Counsel for Respondent :- C.S.C., Kapil Dev
Singh Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Amendment application has been filed today by the learned counsel for the petitioner is taken on record.

As prayed by the learned counsel for the Electricity Department, put up this matter as fresh on 21st August, 2018 to enable him to seek instructions in the matter.

Order Date :- 13.8.2018

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Respondent :- State Of U P And 3 Others
Counsel for Petitioner :- Manoj Kumar
Rajvanshi, Vinay Kumar Mishra
Counsel for Respondent :- C.S.C., Kapil Dev
Singh Rathore

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

Supplementary affidavit filed today is taken on record.

Learned counsel for the petitioner is permitted to implead the concerned Tahsildar as respondent no. 5 in the array of the parties.

This writ petition has been filed, *inter alia*, for the following reliefs:

"I. Issue a writ, order or direction in the nature of certiorari quashing the notice dated 6.7.2018 issued by respondent no. 2 demanding Rs. 1,20,02,967/- as penalty against the alleged theft of electricity (Annexure no. 5 to the writ petition)."

Learned counsel for the petitioner submits that

the impugned notice has been issued by the electricity department without following the provisions contained under the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner after arguing the matter at length confined his prayer to the extent that the petitioner may be permitted to make a fresh objection/representation before the concerned authority in respect of his grievances with a direction to the concerned authority to decide the same within a stipulated period.

Heard learned counsel for the petitioner, Mr. Kapil Dev Singh Rathore, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and without expressing any opinion on the merits of the case, the petitioner is directed to appear on 6.9.2018 at 11.00 A.M. before the Respondent No. 2, Executive Engineer and make a fresh representation/objection before the said authority ventilating his grievances along with the certified copy of this order enclosing therewith a copy of the writ petition along with its Annexures and, if any such representation/objection is made, the said authority shall make all endeavour to consider and decide the same by a speaking order after considering the representation/objections of the petitioner in accordance with law expeditiously preferably within 15 days from the date of receipt of the said representation/objection after affording opportunity of hearing to the petitioner.

It is open for the petitioner to adduce any cogent evidence, if any, in support of his contention and take all legal pleas as permissible in law.

For a period of 45 days from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

With this observation, this writ petition stands disposed of.

Order Date :- 21.8.2018

MLK